

INTA Practice Guides Report

Trademark Enforcement Guide

Australia

SINGLE JURISDICTION REPORT

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I. Pre-filing Requirements/Demand Letters — A. Pre-filing Requirements/Demand Letters

- Before initiating an infringement proceeding in this jurisdiction, a party must send a demand letter. Sending a letter of demand is not required by legislation or common law. However, parties generally send a demand letter as a way to comply with requirements in court practice rules to take genuine steps to resolve a dispute before turning to litigation. Thus, local ethical and court practice rules make a demand letter effectively mandatory in practice.
- Although it is not mandatory to attempt to settle with the other party before instituting proceedings in this jurisdiction, it is commonly done. While not strictly required to, local ethical and court practice rules encourage pre-litigation efforts to resolve substantial issues in dispute between parties.
- Although it is not mandatory to engage in mediation or other alternative dispute resolution proceeding with the other party before instituting proceedings in this jurisdiction, it is commonly done. While not strictly required to, local ethical and court practice rules encourage pre-litigation efforts to resolve substantial issues in dispute between parties. As a result, it is quite common for mediation or alternative dispute resolution to occur before litigation.
- Before initiating an infringement proceeding, a party is required to take the following actions: none, other than those mentioned above.
- The name for such a letter is: a letter of demand or a cease and desist letter.
- Such a letter should be sent at the following time: at any time before proceedings are commenced, provided a reasonable amount of time is allowed for a response.
- Such a letter can be sent by: the owner of the mark; a licensee; an attorney for the owner of the mark; an attorney for the licensee of the mark.
- Specific rules/customary practices applicable to such letters include: the form or content of the letter (see below); the reasonableness of the demand; allowing sufficient time for response.
- With regard to the form or content of the letter, the following details are commonly included: identification of claimant; details of alleged rights infringed; identification of objecting party's first use dates; identification of any trademark registrations owned by the objecting party; details of the alleged infringement; potential claims (other than infringement), e.g., damage claims or costs; time for response; consequences of not responding within the time set out in the letter; threat of legal action; request for undertaking, including obligation to pay contractual penalty for future infringement; request for summary of sales, revenues and/or profits derived from the use of the allegedly infringing mark; request for identification of customers and/or suppliers of products bearing the allegedly infringing mark.
- The consequences of not following the particular rules/customary practices listed above when drafting the letter are: The other side may be able to rely on noncompliance with the rules/customary practices as relevant to the relief to be ordered by the court, including attorney fee orders.

- The length of time within which to allow the recipient to respond to the letter that is considered reasonable is: There is no set period of time to respond that is considered reasonable; however, in general, parties allow at least seven days for a response.
- The following factors are taken into consideration when determining the length of time that is considered reasonable: There are no rules on the factors to be taken into account; however, they generally include the number of allegations made in the letter, whether the sender is requesting information from the recipient, the resources of the recipient, the demands/requests made in the letter, and the number of business days included in the time allowed for response.
- Factors to consider if a demand letter is sent and proceedings for infringement are not initiated include: the claim may be barred by time limits or statute of limitations; the claim may be barred by delay or acquiescence; claims for tortious interference or restraint of trade may arise; loss of credibility in enforcement actions.

II. Claim for Infringement of a Registered Trademark — A. Claim for Infringement of a Registered Trademark

- There is more than one court system or administrative body that has jurisdiction over claims for infringement of a registered trademark (see below).
- The court system or administrative body that most frequently hears claims for infringement of a registered trademark is: the Federal Court.
- The other court system or administrative body that can also hear claims for infringement of a registered trademark is: the Supreme Court of the States and Territories, and the Federal Circuit Court.
- The following factors determine which court or administrative body can hear a case: place of alleged infringement; place where alleged damage occurred; residence of plaintiff; residence of defendant; value of the claim; nature of the right; nature of the remedies sought; limitations on the jurisdiction and relief available.
- The following parties have standing/authority to institute proceedings for infringement of a registered trademark: the registered proprietor of a mark; the equitable owner of a mark; an exclusive licensee (the owner/registered proprietor must join the proceeding) (Under the legislation, the proprietor is to be joined as a defendant.); a non-exclusive licensee (the owner/registered proprietor must join the proceeding) (Under the legislation, the proprietor is to be joined as a defendant.).
- If there is more than one registered proprietor/owner, they must all join in instituting the proceeding.
- Trademark infringement proceedings are decided by a judge with no jury.
- There is no time limit for initiating trademark infringement proceedings. Strictly speaking, there is no time limit for instituting trademark infringement proceedings where the relief sought is by way of injunction. However, a six-year statute of limitations applies to claims for damages for trademark infringement.
- Once infringement proceedings are initiated, the stages of the proceedings include: filing of claim (including presentation of facts and legal arguments); filing of reply/defense to claim; filing of counterclaim; filing of evidence; mediation; discovery; dispositive motions; preliminary motions (to dismiss, for preliminary injunction or temporary restraining order); filing of briefs/written arguments; oral hearing; oral testimony/examination of witness; trial; judgment/decision; hearing to determine appropriate remedies; damages (or other financial relief) assessment; expert evidence, conferral and joint reports.
- The average amount of time from the instituting of infringement proceedings through trial/final hearing is: between six months and one year.

- The average amount of time from the end of the trial/final hearing to the issuance of judgment is: between three and six months.

III. Claim for Infringement of Unregistered Trademark/Unfair Competition/Passing Off — A. Claim for Infringement of Unregistered Trademark/Unfair Competition/Passing Off

- Unregistered trademarks are protected under the following laws: common law of passing off; common law of tort; trademark statute; unfair competition statutes (Australia has Federal and State unfair competition laws, including the Australian Consumer Law and State Fair Trading Acts.).
- The following parties have standing/authority to institute proceedings for infringement of an unregistered trademark: the owner of the unregistered right.
- If there is more than one owner of an unregistered trademark, they must all join in instituting the proceeding.
- It is possible to institute a single proceeding for both registered trademark infringement (under the trademark law) and unregistered trademark infringement (under the law(s) listed above). In Australia, it is common to commence proceedings for registered trademark infringement and the common law tort of passing off (i.e., unregistered trademark infringement).

IV. Civil Enforcement-- Emergency Measures — A. Ex Parte Injunctions

- Ex parte injunctions are available to claimants seeking emergency relief.
- When applying for an ex parte injunction, it is not necessary to institute infringement proceedings at the same time. In urgent cases (which is usually the case for ex parte injunctions), a person/corporation may apply to the court for an ex parte injunction without first having instituted proceedings. However, the court usually will grant an injunction only if the person/corporation gives an undertaking that proceedings will be commenced promptly thereafter.
- The types of ex parte injunction available include: prohibitory (to prohibit the defendant from performing certain acts); mandatory (to require the defendant to perform certain acts).
- There is no specified statutory or court-determined deadline for seeking an ex parte injunction.
- A delay in applying for an ex parte injunction after becoming aware of the alleged infringing activities can prevent the applicant from obtaining the desired relief under the following circumstances: where it may not be in the interests of justice for the court to order the desired relief, having regard to the delay.
- The purpose of an ex parte injunction is: to restrain further infringing activities until trial or a further hearing; to prevent the consequences of an infringement or violation; to obtain or preserve evidence; to ensure the effectiveness of the eventual remedy; to preserve the status quo; to prevent irreparable injury; to protect the public interest.
- The strategic benefits of obtaining an ex parte injunction include: it may put an end to the infringement and litigation quickly; it may save costs; putting the defendant at a strategic disadvantage at the beginning of the case; obtaining or preserving evidence; ensuring the availability of the requested remedy; ensuring the availability of compensation for damages; getting an assessment of the merits by the court (Given the early stage of proceedings and that the task for the court is to do what is just in the circumstances, the information learned about the court's view of the merits is minimal.); reducing potential damage caused by infringement.
- The risks of seeking an ex parte injunction (if it is not granted) are: increased costs of the proceedings; early disclosure of plaintiff's case; early adverse determination;

potential for a damages claim under a bond or cross-undertaking (i.e., an undertaking in damages); resolution of potentially dispositive issues on an incomplete or not-well-developed record.

- An ex parte injunction remains in place:until further order by the court.
- The defendant is notified of the grant of an ex parte injunction:by the plaintiff.
- The plaintiff must notify the defendant within the following time frame: There is no set time frame for giving such notice; however, in practice the plaintiff generally notifies the defendant immediately after it obtains an ex parte injunction (and it would be in the plaintiff's interest to do so).
- The procedure for applying for an ex parte injunction includes the following:motion;supporting memorandum/points and authorities of law;supporting affidavits or declarations;supporting documentary evidence;supporting witness testimony (Oral testimony from a witness would be very rare on an application for an ex parte injunction.);hearing;order;posting bond, cross-undertaking or other security.
- The amount of the bond or cross-undertaking is determined based on:the potential damage/losses to the defendant caused by an improvidently entered injunction;the defendant's costs in defending the injunction application;statutory provisions;the value or importance of the trademark;the financial resources of one or both parties.
- The factors considered in the granting of an ex parte injunction are:inadequacy of damages as a remedy;balance of convenience or hardships; i.e., consideration of the hardship to each side arising from the grant or from the denial of the injunction;whether the status quo should be preserved;likelihood of success on the merits;the public interest favors entry of the injunction;urgency;timeliness with which plaintiff sought the injunction;defendant's ability to pay awarded damages.
- The following forms of evidence are admissible in support of an ex parte injunction application:written witness statements;oral testimony of witnesses (This would be rare on an application for an ex parte injunction.);documents;affidavitsamples of infringing product(s).
- If the court later finds that the ex parte injunction was granted in error, the applicant will be required to: compensate the defendant for damages suffered from the injunction; compensate the defendant pursuant to a cross-undertaking.
- The cost of obtaining an ex parte injunction, including attorney fees and court costs (but not including the cost of a bond), is approximately: more than USD \$200,000 (at least potentially; the range is between AUD 150,000 and 300,000, which is approximately between USD 109,000 and 218,000).
- The costs of an ex parte injunction are recoverable as follows: If the plaintiff is ultimately successful and obtains an order for the payment of its attorney fees, a significant proportion of actual costs incurred will be recoverable pursuant to court processes for assessment of necessary and reasonable attorney fees. As a rule of thumb, the proportion of actual costs incurred that may be recoverable ranges between 50 and 70 percent.
- On average, an ex parte injunction is issued within the following time period (counting from the filing of the application to the issuance of the injunction): less than two days.
- In an ex parte proceeding, a party may request an order to enter the premises of another party and to search for property/documents/items that may become evidence (i.e., a "search order" or "search and seizure order").
- The following party or parties will be present at the inspection: the marshall, sheriff or other law enforcement officer; the party who obtained the order; the party against whom the order is granted; the party's/parties' legal representative(s).
- In an ex parte proceeding, a party may request an order to freeze the assets of

another party to prevent dissipation of the assets before conclusion of the proceedings (i.e., a “freezing order” or “freezing injunction”).

- The grant of an ex parte injunction can be appealed.
- Appeal of a decision granting an ex parte injunction can be expedited.
- The denial of an ex parte injunction can be appealed.
- Appeal of a decision denying an ex parte injunction can be expedited.

IV. Civil Enforcement-- Emergency Measures — B. Interim Inter Partes Injunctions

- Interim inter partes injunctions are available to claimants seeking emergency relief.
- In order to apply for an interim inter partes injunction, it is necessary to institute infringement proceedings at the same time.
- The types of interim inter partes injunction available include:prohibitory (to prohibit the defendant from performing certain acts);mandatory (to require the defendant to perform certain acts).
- There is no specified deadline for seeking an interim inter partes injunction.
- A delay in applying for an interim inter partes injunction can prevent the applicant from obtaining the desired relief under the following circumstances: where the delay affects the circumstances so that it is not in the overall interests of justice to grant the interim injunction.
- The purpose of an interim inter partes injunction is:to restrain further infringing activities until trial or a further hearing;to prevent the consequences of an infringement or violation;to obtain or preserve evidence;to ensure the effectiveness of the eventual remedy;to preserve the status quo;to prevent irreparable injury;to protect the public interest.
- The strategic benefits of obtaining an interim inter partes injunction include:it may put an end to the infringement and litigation quickly;it may save costs;putting the defendant at a strategic disadvantage at the beginning of the case;obtaining or preserving evidence;ensuring the availability of the requested remedy;ensuring the availability of compensation for damages;getting an assessment of the merits by the court;reducing potential damage caused by infringement.
- The risks of seeking an interim inter partes injunction (if it is not granted) are:increased costs of the proceedings;early disclosure of plaintiff's case;prejudicial adverse determination;potential for a damages claim under the bond or cross-undertaking;resolution of potentially dispositive issues on an incomplete or not-well-developed record.
- An interim inter partes injunction remains in place:until further order by the court.
- The procedure for applying for an interim inter partes injunction includes the following:motion, with notice to all parties;supporting memorandum/points and authorities of law;supporting affidavits or declarations;supporting documentary evidence;responsive memorandum/points and authorities of law;responsive affidavits or declarations;live presentation of evidence (Only rarely will oral cross-examination be permitted on an application for an interim inter partes injunction.);discovery (While formal discovery as such is rare on an application for an interim inter partes injunction, urgent notices requiring production of narrow categories of documents are common.);witness testimony (See comment on live presentation of evidence, above.);hearing;order;posting bond, cross-undertaking or other security.
- The amount of the bond or cross-undertaking is determined based on:the potential damage/losses to the defendant caused by an improvidently entered injunction;the defendant's costs in defending the injunction application;statutory provisions;the value or importance of the trademark to the plaintiff;the financial resources of one or both parties.

- The factors considered in the granting of an interim inter partes injunction are: inadequacy of damages as a remedy; balance of convenience or hardships; i.e., consideration of the hardship to each side arising from the grant or from the denial of the injunction; whether the status quo should be preserved; likelihood of success on the merits; the public interest favors entry of the injunction; urgency; timeliness with which plaintiff sought the injunction; defendant's ability to pay awarded damages.
- The following forms of evidence are admissible in support of an interim inter partes injunction application: written witness statements; oral testimony of witnesses (Oral testimony of witnesses is rare on an application for an interim inter partes injunction.); documents; affidavits; samples of infringing product(s).
- If the court later finds that the interim inter partes injunction was granted in error, the applicant will be required to: compensate the defendant for damages suffered from the injunction; compensate the defendant pursuant to a cross-undertaking.
- The cost of obtaining an interim inter partes injunction, including attorney fees and court costs (but excluding the cost of a bond), is approximately: more than U.S. \$200,000 (at least potentially; the range is between AUD 150,000 and 300,000, which is approximately between USD 109,000 and 218,000).
- The costs of an interim inter partes injunction are recoverable as follows: If the plaintiff or the defendant is ultimately successful and obtains an order for the payment of its attorney fees, a significant proportion of actual costs incurred will be recoverable pursuant to court processes for assessment of necessary and reasonable attorney fees. As a rule of thumb, the proportion of actual costs incurred that may be recoverable ranges between 50 and 70 percent.
- It takes approximately the following length of time to obtain an interim inter partes injunction (counting from the filing of the application to the issuance of the injunction): less than 10 days. However, times vary depending on the urgency of the circumstances.
- In an interim inter partes proceeding, a party may request an order to enter the premises of another party to search for property/documents/items that may become evidence (i.e., a "search order" or "search and seizure order"). However, urgent search and seizure orders are, in practice, generally confined to ex parte proceedings or proceedings where the defendant is not legally represented.
- The following party or parties will be present at the inspection: the party's/parties' legal representative(s). Under the Federal Court of Australia practice note for search orders, the search party present at the inspection must include an independent lawyer to supervise and a lawyer representing the party who obtained the order. Ordinarily, the search party present at the inspection should not include the party who obtained the search order or its directors, officers, employees or partners. The number of people in the search party should be as small as is reasonably practicable.
- In an interim inter partes proceeding, a party may request an order to freeze the assets of another party to prevent dissipation of the assets before conclusion of the proceedings (i.e., a "freezing order" or "freezing injunction").
- The determination on an application for an interim inter partes injunction can be made into a final decision on the merits (i.e., an interim inter partes injunction can be made permanent).
- The hearing on an interim inter partes injunction can be consolidated with the trial or final determination on the proceeding.
- Witnesses must be identified in an interim inter partes injunction proceeding before the hearing.
- The grant of an interim inter partes injunction can be appealed without waiting for final disposition of the case only under the following circumstances: where injustice

may result if the interim injunction continues in operation pending the final disposition of the appeal and the interim injunction has been granted in error.

- Further appeal of the grant of an interim inter partes injunction is possible without waiting for final disposition of the case only under the following circumstances: where injustice may result if the interim injunction continues in operation pending the final disposition of the appeal and the interim injunction has been granted in error.
- Appeal of a decision granting an interim inter partes injunction can be expedited.
- The denial of an interim inter partes injunction can be appealed without waiting for final disposition of the case only under the following circumstances: where injustice may result if the interim injunction is not granted and the decision to refuse to grant the injunction was made in error.
- Further appeal of the denial of an interim inter partes injunction is possible without waiting for final disposition of the case only under the following circumstances: where injustice may result if the interim injunction is not granted and the decision to refuse to grant the injunction was made in error.
- Appeal of a decision denying an interim inter partes injunction can be expedited.

IV. Civil Enforcement-- Emergency Measures — C. Standards for Obtaining Inter Partes and Ex Parte Injunctions

- The standard for obtaining an inter partes injunction is the same as the standard for obtaining an ex parte injunction. In both cases, the court decides whether justice requires that an injunction be granted to prevent harm that would otherwise be irreparable. In the case of an application for the grant of an injunction ex parte, the court would consider the harm that would occur in the very short period of time before the defendant could be served and afforded an opportunity to be heard.

V. Early Resolution of Litigation — A. Interim Applications Available for Ending Proceedings Early

- A party can seek to end proceedings prior to trial or final determination by interim applications for: summary judgment (judgment as a matter of law when facts are undisputed); determination of preliminary issue by trial or hearing; striking out or dismissing a party's case on the pleadings.

V. Early Resolution of Litigation — B. Summary Judgment

- A party can conclude proceedings early by obtaining summary judgment in the following circumstances: there is no arguable case or defense (i.e., there is no reasonable prospect of the party's succeeding in the proceedings).
- Summary judgment can be requested by the following parties: plaintiff; defendant.
- The applicant for summary judgment must: make an application to the court; file a written statement containing the appropriate facts, argument and legal support; file supporting documents or other evidence; obtain permission of the court.
- A ruling on a motion for summary judgment may always be appealed.
- A summary judgment may be appealed on the following grounds: the court improperly resolved disputes about material facts; the court made an error of law.

V. Early Resolution of Litigation — C. Trial of Preliminary Issue

- Proceedings can be expedited through an early trial or hearing on a preliminary issue under the following circumstances: when, in the circumstances, such expedition is consistent with a just disposition of the proceedings efficiently and at the lowest

cost.

- Trial or hearing of a preliminary issue can be requested by the following parties: plaintiff; defendant.
- The applicant for trial or hearing of a preliminary issue must: make an application to the court; file a memorandum containing the appropriate facts, arguments and legal support; file supporting witness affidavits or declarations of fact; obtain permission of the court.
- For the court to grant a trial or hearing of a preliminary issue, the following conditions must be met: the determination of the preliminary issue is likely to have a beneficial impact on the conduct of the proceedings.

VI. Evidence — A. Evidence

- The following forms of evidence can be relied upon in support of a claim in this jurisdiction's trademark infringement proceedings: documentary evidence (including samples/photos of allegedly infringing items); expert evidence; oral testimony; survey evidence (In practice, survey evidence is not widely used and is rarely determinative.).
- The following forms of evidence can be relied upon in defense of a claim in this jurisdiction's trademark infringement proceedings: documentary evidence; expert evidence; oral testimony; survey evidence (In practice, survey evidence is not widely used and is rarely determinative.).
- A claimant must present or give notice of any evidence on which it will rely at the following time: before the hearing and by timetabling deadlines as directed by the court from time to time.
- A defendant must present or give notice of any evidence on which it will rely at the following time: before the hearing and by timetabling deadlines as directed by the court from time to time.
- A party to the proceedings may obtain information that is within the possession or control of another party to the proceedings: at the request of the party.

VII. Trial/Oral Hearing — A. Trial/Oral Hearing

- Evidence may be presented at the trial or oral hearing in the form of: written witness statements (including, e.g., affidavits, depositions or statutory declarations); oral testimony of witnesses; documents; surveys (In practice, survey evidence is not widely used and is rarely determinative.); physical objects; expert testimony.
- It is possible to introduce surveys in evidence for the following issues: secondary meaning/acquired distinctiveness; whether a mark is famous or well known; likelihood of confusion; dilution (although Australia does not have a law of trademark dilution as such); genericness; functionality.
- The use of survey evidence is subject to the following requirements: The general requirement is that survey evidence must be of such a form that the court does not reject the evidence and gives it sufficient probative value. The exact requirements will depend upon the matters sought to be proved by the survey and the circumstances of the case. Some examples are: non-leading questions; sufficient sample size; unambiguously phrased questions; questions that are relevant to the issues in dispute.
- The length of an average trial or final hearing in a civil action for trademark infringement is: three days.
- The nature of the proceedings is: adversarial, i.e., the proceedings are driven by the parties and their representatives (e.g., the litigants control and present evidence) and

the decision maker plays a relatively passive role.

- A trial or final hearing includes the following: opening statements by counsel for each party; plaintiff's case through examination of witnesses by plaintiff; defendant's case through examination of witnesses by defendant; plaintiff's rebuttal case; cross-examination of witnesses by parties; closing argument by counsel for each party.
- Witnesses are examined by: the lawyers.
- As part of trial preparation, the parties do the following: provide draft findings and conclusions if the proceeding is to be decided by a judge; provide a skeleton/outline of argument; submit marked exhibits; provide stipulations of fact; stipulate as to the authenticity of the documents; identify trial witnesses; consider possibility for settlement; attempt to mediate the dispute.

VIII. Judgment/Final Orders — A. Judgment/Final Orders

- It takes approximately the following amount of time for a decision to be handed down after trial or final hearing: three to six months.
- The decision may be appealed within the following time frame: 21 days.
- Appealing a decision is of right; no permission is needed.
- There is more than one court to which an initial appeal can be made; they are: the Full Court of the Federal Court, in the case of proceedings in the Federal Court, and the Court of Appeal of a State Court, in the case of proceedings in a State Court.
- The court that most frequently hears initial appeals is: the Full Court of the Federal Court.
- The other court(s) that can also hear(s) initial appeals is: the Court of Appeal of a State Court.
- The appeal court reviews: both the facts of the case and legal issues.
- Further appeal is possible to the following court: the High Court of Australia, by special leave to appeal.
- Further appeal is not granted as a matter of right; permission is required.

IX. Post-Judgment Matters — A. Post-Judgment Matters

- A defendant has the following length of time to comply with an order issued in a judgment: on service of the order, or the time specified within the order, if a time is specified.
- A judgment may be enforced by way of the following proceeding(s): where the judgment involves orders restraining infringing conduct, proceedings to have the infringer dealt with for noncompliance with (contempt of) the judgment; where the judgment involves orders for the payment of money, proceedings by way of insolvency/bankruptcy demand, garnishee order in relation to income, sequestration of assets and punishment for contempt.

X. Costs of Litigation — A. General

- The types of costs that may be recovered by the prevailing party during/after legal proceedings include: attorney fees; court fees; expert fees; bond or security for costs; copying costs (for producing documents, in discovery, typically); court reporter fees (for depositions and hearings); witness fees (for third-party witnesses); costs incurred by a party or its witnesses (for travel, food, lodging or other expenses).
- A range for the all-inclusive cost of a typical action for trademark infringement from filing of the claim through trial is as follows: between AUD 200,000 and 500,000.
- The successful party in a trademark infringement claim can expect to recover a

portion of the attorney fees incurred (as distinguished from damages awarded). See below.

- The average percentage of attorney fees incurred in a trademark infringement claim that a successful party can expect to recover is:50 percent.
- Attorney fees are assessed using the following method(s):proof of attorney time expended, paid at rates specified by the court.

X. Costs of Litigation — B. Security for Costs

- When initiating proceedings, a plaintiff may be required to provide security for any costs that may eventually be awarded against it.
- A defendant may be required to provide security for costs after proceedings are initiated.
- Application for security for costs is made via the following procedure: following correspondence between the parties, by motion supported by evidence on affidavits with requests for document production concerning financial circumstances.
- For the court to grant security for costs, the following conditions must be met:the claimant is resident outside the jurisdiction;there is reason to believe that the plaintiff will not be able to pay the defendant's costs if ordered to do so.
- An application for security for costs can be made at the following stage of the proceedings: at any stage.
- In granting security for costs, the court may make the following orders:the amount of the security;the manner in which the security must be given;the time frame in which the security must be given.
- An order for security for costs may be appealed under the following circumstances: with the leave of the court.
- If security is ordered, it is customarily provided in the form of:bond/payment to the court;third-party guarantee.

XI. Remedies — A. Remedies

- The following monetary remedies are available for trademark infringement:accounting of defendant's profits (but not actual damages);actual damages (but not an accounting of defendant's profits);not strictly punitive damages, but non-compensatory damages that mark the court's disapproval of the defendant's conduct in acting in disregard of the plaintiff's rights.
- Actual damages are assessed using the following methods:lost profits of plaintiff;damages to plaintiff;constructive license fee/reasonable royalty.
- Determination of the type and amount of remedy is part of the trial on liability only under the following circumstances: only where liability and amount of remedy have not been separated, which separation is common.
- The following non-monetary remedies are available for trademark infringement:injunctions;delivery up of infringing labels, packaging or products;destruction;disposal;removal or obliteration;public dissemination of judgment;recall of infringing products;corrective advertising;identification of supplier.

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